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NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 17.01.2018.

PRESENT: 1. Hon'ble Member(J) **Shri Ratakonda Murali**
2. Hon'ble Member(T) **Dr. Ashok Kumar Mishra**

C.P. No. or C.A. No.	T.P. No.	Purpose	Section	Name of the Parties M/s. / Mr.
CP(CAA) No.51/BB/ 17	-	For Consideratio-n	230/ 232	Kautex Plastic Technology Gujarat Pvt. Ltd.

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE
1)	L. Ajai . P. Johnson SPJ Legal	For Petitioners	
2)	Prema Hatti	ROC	

ORDER

Counsel for Petitioner is present. Smt. Prema Hatti, Standing Counsel for ROC & R.D is present. Orders passed in I.A 187/17 vide separate order. For carrying out amended copy and for filing amended petition, list on 31/01/2018.

Member (T) **Member (J)**

IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

I.A. 187/17
IN
C.P(CAA)No.51/BB/2017
U/sec.230-232 of the Companies Act, 2013

IN THE MATTER OF
KAUTEX PLASTIC TECHNOLOGY GUJARAT PRIVATE LIMITED
WITH
TEXTRON INDIA PRIVATE LIMITED

Order delivered on: **17th January 2018**

Coram: Hon'ble Shri Ratakonda Murali, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

Parties Present :
1) Mr. Saji P.John, Advocate, SPJ Legal, Unit No.1002, 10th Floor, # 30, Prestige Meridian II M G Road, Bengaluru 560001-Advocate for the Petitioner Companies
2) Ms.Prema Hatti, Standing Counsel for R.D & ROC.

Per : **Hon'ble Shri Ratakonda Murali, Member (Judicial)** - Author

AMENDED ORDER

This Application is filed on behalf of the Applicant Company seeking amendment of appointed date from 01/04/2015 to 01/04/2018 in pursuance of decision taken by the Board of Directors.

It is averred in the Affidavit filed by Director of the Applicant Company stating that, Applicant is a Transferor Company and on the Application filed by the Applicant Company meeting of shareholders and creditors was dispensed with. Now company has filed the present Petition. However, Transferee Company convened meeting of shareholders who approved the scheme subject to change of appointed date as 01/04/2018.

We have seen the Resolutions passed by the Board of Directors of the Applicant Company dated 04/12/2017. The Board of Directors have passed Resolution for change of appointed date from 01/04/2015 to 01/04/2018. Smt. Prema Hatti, Standing Counsel for ROC & R.D is present. She reported that, no objection for Amendment. Even Assistant from Official Liquidator office has reported no objection.

In the result, I.A 187/17 is allowed. The appointed date is changed from 01/04/2015 to 01/04/2018. The Applicant to carryout amendment in the scheme and to file amended scheme.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

17/1/18

(RATAKONDA MURALI)
MEMBER, JUDICIAL